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TAB 8



Board of Education Report

File #: Rep-326-24/25, **Version:** 1**Agenda Date:** 5/13/2025**In Control:** Facilities

Define and Approve the 2025-2026 Education Code Section 47614 (Proposition 39) Facilities Renovation Effort and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

Facilities Services Division and Office of the Superintendent

Brief Description:

(Define and Approve the 2025-2026 Education Code Section 47614 (Proposition 39) Facilities Renovation Effort and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein)

Recommends definition and approval of up to 48 projects to provide facilities renovations at 45 District school sites in order to fulfill the Los Angeles Unified School District's responsibilities imposed by Proposition 39, as detailed in Exhibits A, B, and C, and the amendment of the Facilities Services Division Strategic Execution Plan to incorporate therein, for a cumulative budget of up to \$2,369,284.

Action Proposed:

Define and approve 2025-2026 Education Code Section 47614 (Proposition 39) facilities renovations for up to 48 projects at 45 District school sites, as listed on Exhibits A, B, and C, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The not-to-exceed cumulative budget for this renovation effort is \$2,369,284.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed projects, including budget modifications and the purchase of equipment and materials.

Background:

With the passage of Proposition 39 in November 2000, California Education Code Section 47614 was amended with the intent that public school facilities should be shared fairly among all public-school students, including those in charter schools. Proposition 39 requires that school districts make available, to all charter schools operating in their school district that submitted a legally sufficient facilities request, facilities in conditions reasonably equivalent to those in which the charter students would be accommodated if they were attending other public schools of the district. Facilities provided shall be contiguous, furnished and equipped, and shall remain the property of the school district.

Each of the charter schools identified on Exhibits A and B submitted a legally sufficient facilities request to the District and may occupy District school sites for the 2025-2026 school year pursuant to Proposition 39. In accordance with the requirements and timelines of Proposition 39, preliminary proposals are issued on February 1st and final offers are issued on April 1st each year.

With approval of this proposed action, Bond Program funds earmarked for charter school facilities projects will be made available to immediately execute renovations at multiple District school sites in order to fulfill the District's responsibilities imposed by Proposition 39. These facilities improvements will increase the likelihood that the District school and charter school will successfully and safely co-locate on a single school site with

minimal interference and disruption to their respective educational programs. The scope of work to be undertaken at each school site and its associated schedule and budget may vary depending on site conditions and needs.

The 2025-2026 Proposition 39 Facilities Renovation Effort includes various facilities renovations, reconfigurations, technology, furniture and equipment, and communication/safety systems purchases and upgrades, such as:

Low Voltage Systems: Local area data networks, phone and public address systems, and independent intrusion alarms. Modifications to reconfigure facilities for District-operated programs or another charter school where an existing charter school occupant will relocate to another District school site, relocate to a private/third party site, or cease operations.

Site Renovations and Reconfigurations: Miscellaneous renovations and reconfigurations to classroom space identified for charter school use. Improvements to school facilities where charter schools currently occupy space but will not continue occupancy in the 2025-2026 school year will be reconfigured, including connecting low-voltage systems for District-operated or other programs, as appropriate.

Technology Equipment: Repurpose and purchase computers, laptop carts and/or end user peripherals.

Furniture & Equipment: Repurpose existing furniture and equipment, and plan, purchase and deliver new furniture and equipment (e.g., desks, chairs, bookshelves, waste bins, emergency radio systems, but excluding technology equipment).

Office of Environmental Health and Safety: California Environmental Quality Act (CEQA) analysis, including associated regulatory obligations.

The space allocated to each charter school by the District must be furnished, equipped and available for occupancy by the charter school for a period of at least 10 working days prior to the first day of instruction of the charter school. For good cause, this period is subject to reduction by the District, but to no fewer than seven working days. As such, work will commence immediately after Board approval to ensure adequate facilities are allocated in a timely manner to each charter school.

Exhibit B lists all existing co-location sites on which charter schools will continue to occupy the same space in 2025-2026 as they currently occupy in the 2024-2025 school year (i.e., “No Change”). Although there is typically no new scope required for these sites, the District may need to perform some renovation work in order to continue to ensure the conditions of the facilities occupied by a charter school remain reasonably equivalent. The potential scope of work for each “No Change” site may vary depending on site conditions and needs. If any additional work is required, District staff will follow the Budget Modification Request process for the corresponding sites referenced in Exhibit B, in accordance with District policy.

Exhibit C lists co-location sites on which spaces are presently configured for charter schools that will not continue occupancy in the 2025-2026 school year. Sites vacated will be returned to previous conditions with all low voltage systems reconnected to District-operated programs, as appropriate, and rekeyed as necessary.

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens’ Oversight Committee (BOC) at its

In Control: Facilities

meeting on May 1, 2025, as referenced in Exhibit D. The presentation that was provided is included as Exhibit E. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified School District's ability to successfully implement the Facilities SEP.

Expected Outcomes:

Approval of the proposed action will allow the execution of the 2025-2026 Proposition 39 facilities renovations for up to 48 projects at 45 District school sites.

Renovations for the 24 projects in Exhibit A are for charter schools that are expected to serve a collective total in-district classroom average daily attendance of approximately 4,700 students in approximately 311 classrooms, special education spaces, and administrative offices.

Of the 21 projects in Exhibit B, charter schools are expected to continue serving a collective total in-district classroom average daily attendance of approximately 4,800 students in approximately 327 classrooms, special education spaces, and administrative offices.

Charter schools are expected to serve a collective total in-district classroom average daily attendance of approximately 10,530 students.

Board Options and Consequences:

A "yes" vote will result in the Facilities SEP being amended and the District utilizing Bond Program funds earmarked for charter school facilities projects to complete facilities renovations at District school sites as identified in Exhibits A, B, and C.

A "no" vote will result in the District being obligated to use General Funds to complete the facilities renovation projects identified in Exhibits A, B, and C due to the obligation to allocate the use of reasonably equivalent, contiguous, furnished and equipped facilities to the charter schools pursuant to Proposition 39 for the 2025-2026 school year.

Policy Implications:

This action does not change District policies.

Budget Impact:

The not-to-exceed cumulative budget for this renovation effort is \$2,369,284. The renovation effort is funded with Bond Program funds earmarked specifically for charter school facilities upgrades and expansions. Should a charter school not accept the District's offer of space, the school site may be allocated to another charter school, or renovations at that individual school site will not be undertaken and the associated funding will not be expended.

The not-to-exceed budget is based on the best information presently available to the District. However, due to the current economic climate, these anticipated costs may require adjustments due to a variety of factors, such as the availability of the District's current workforce, and delays and increased costs of manufacturing, sales, and distribution of materials and supplies. Individual project budgets will be reviewed regularly and will be adjusted accordingly to enable the successful completion of each project.

Student Impact:

Pursuant to Proposition 39, public school facilities should be shared fairly among all public-school pupils, including those in charter schools. Through this proposed action, the Board of Education authorizes staff to fulfill this mandate.

Equity Impact:

Proposition 39 is a state law passed by California voters in 2000, which requires school districts to make facilities (including both classroom and non-classroom spaces) available to public charter schools serving students who reside in the district.

Issues and Analysis:

Proposition 39 requires school districts to make available, to all charter schools operating in their school district that submit a legally sufficient facilities request, facilities in conditions reasonably equivalent to those in which the charter students would be accommodated if they were attending other public schools in the district. Facilities provided shall be contiguous, furnished, equipped and available for occupancy by the charter school for a period of at least 10 working days prior to the first day of instruction of the charter school.

To fulfill this mandate, the District faces numerous challenges including:

- Extremely brief amount of time between a charter school's May 1st acceptance of the District's final offer and the deadline for the District to provide occupancy at least 10 working days before each charter school's first day of instruction.
- Due to the current economic climate, a variety of factors such as availability of the District's current workforce, and delays and increased costs in manufacturing, sales, and distribution of materials and supplies.
- Very narrow window of time to assess the type, amount and condition of the District's existing technology, furniture and equipment, match it to the charter schools' grade levels and plan, repurpose/purchase, receive and deliver additional/supplemental technology, furniture and equipment.
- Varying conditions of allocated spaces on different school sites, including amount and type of furniture and equipment that may change between original site survey and actual occupancy.
- Limited sources of reasonably equivalent existing furniture and equipment, and lead time required to research, locate, validate, repair and repurpose it.

The District has implemented numerous successful strategies to reduce project costs and timelines including:

- Establishing procedures to streamline the process from pre-planning to post-occupancy.
- Re-purposing existing furniture and equipment recovered from charter schools that vacated District facilities or have expiring furniture and equipment leases.
- Creating templates for reasonably equivalent furniture and equipment for specific grade levels in order to improve planning, repurposing/purchasing and delivery.

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- Standardizing manufactured item selections to speed purchase, production, and delivery.

Attachments:

Exhibit A - 2025-26 Proposition 39 Facilities Renovations

Exhibit B - 2025-26 Proposition 39 Facilities Renovations “No Change” Projects

Exhibit C - 2025-26 Proposition 39 Facilities Renovations “Vacating” Projects

Exhibit D - BOC Resolution

Exhibit E - BOC Presentation

Submitted:

04/08/25

File #: Rep-326-24/25, Version: 1
In Control: Facilities

Agenda Date: 5/13/2025

RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

✓ Approved as to form.

APPROVED BY:


CAROLYN SPAHT GONZALEZ
Chief of Staff
Office of the Superintendent

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Financial Officer
Facilities Services Division

✓ Approved as to budget impact statement.

APPROVED BY:


KRISZTINA TOKES
Chief Facilities Executive

PRESENTED BY:


MARK CHO
Deputy Director of Facilities
Maintenance and Operations
Facilities Services Division

Exhibit A
2025-26 Proposition 39 Facilities Renovations

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#	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; RD=Reduction)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	Charter School Spaces to Reconfigure to Office	Charter School Spaces to Repurpose (Furniture Relocations Only)	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
1	1	S	24th St. ES	Crown Preparatory Academy	R	1	23	2	0	0	0	0	0	1	26	\$16,700	Q2-2025	Q3-2025
2	1	S	42nd St. ES	ISANA Nascent Academy	R/RD	1	11	3	0	0	0	3	0	2	12	\$60,400	Q2-2025	Q3-2025
3	1	W	6th Ave. ES	Lashon Academy - City Campus	G	1	6	2	0	3	0	0	0	0	12	\$140,400	Q2-2025	Q3-2025
4	1	S	Audubon MS	Crenshaw Arts/Tech Charter HS (CATCH)	R/RD	1	7	2	0	0	0	1	0	1	9	\$28,200	Q2-2025	Q3-2025
5	1	S	Harte Preparatory MS	Ednovate - South LA College Prep	G	1	17	2	0	1	1	0	0	0	22	\$78,300	Q2-2025	Q3-2025
6	1	S	Manual Arts HS	Global Education Academy MS	N/R	0	0	0	1	5	2	2	0	0	8	\$364,500	Q2-2025	Q3-2025
7	1	S	Obama Global Preparation Academy	ISANA Nascent Academy	N/R	0	0	0	1	5	2	4	0	0	8	\$252,800	Q2-2025	Q3-2025
8	2	E	2nd St. ES	Extera Public School - 2nd St.	R/RD	1	8	2	0	0	0	1	0	1	10	\$28,200	Q2-2025	Q3-2025
9	2	E	Belmont HS	Los Angeles Academy of Arts and Enterprise	R	1	11	2	0	0	0	0	0	1	14	\$16,700	Q2-2025	Q3-2025
10	2	E	Stevenson College & Career Preparatory	Collegiate Charter HS of Los Angeles	RD	1	10	2	0	0	0	2	0	0	11	\$30,500	Q2-2025	Q3-2025
11	3	N	Canoga Park MS	Ingenium Charter School	RD	1	15	2	0	0	0	2	0	0	16	\$30,500	Q2-2025	Q3-2025

Exhibit A
2025-26 Proposition 39 Facilities Renovations

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#	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; RD=Reduction)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	Charter School Spaces to Reconfigure to Office	Charter School Spaces to Repurpose (Furniture Relocations Only)	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
12	4	W	Marina Del Rey MS	Goethe International Charter School	G/R	1	17	2	0	1	0	0	0	0	21	\$62,600	Q2-2025	Q3-2025
13	4	W	Westchester Enriched Sciences Magnets	WISH Academy HS	R	1	14	4	0	0	0	0	0	1	19	\$16,700	Q2-2025	Q3-2025
14	5	W	Hobart ES	Vista Horizon Global Academy	G	1	8	2	0	1	0	0	0	0	12	\$46,800	Q2-2025	Q3-2025
15	5	W	Sonia Sotomayor Arts and Sciences Magnet	ISANA Octavia Academy	N	0	0	0	1	8	2	0	0	0	11	\$435,600	Q2-2025	Q3-2025
16	5	E	West Vernon ES	Gabriella Charter School #2	RD	1	10	2	0	0	0	3	0	0	10	\$18,600	Q2-2025	Q3-2025
17	6	N	Erwin ES	Ararat Charter School	RD	1	9	2	0	0	0	1	0	0	11	\$19,000	Q2-2025	Q3-2025
18	6	N	Fair ES	New Horizons Charter Academy	RD	1	8	2	0	0	0	0	0	0	11	\$7,500	Q2-2025	Q3-2025
19	6	N	Fair ES	Ararat Charter School	N	0	0	0	1	2	2	0	0	0	5	\$199,800	Q2-2025	Q3-2025
20	6	N	Maclay MS	Bert Corona Charter HS	G/R	1	10	2	0	0	1	0	0	1	14	\$70,000	Q2-2025	Q3-2025
21	6	N	Valerio ES	Lashon Academy - Valley Campus	RD	1	4	2	0	0	0	1	0	0	6	\$19,000	Q2-2025	Q3-2025
22	7	S	Curtiss MS	Magnolia Science Academy #3	R/RD	1	13	2	0	0	1	2	1	1	15	\$84,700	Q2-2025	Q3-2025

Exhibit A
2025-26 Proposition 39 Facilities Renovations

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#	Board District	Region	District Campus	Charter School	Type (G=Growth; N=New; R=Reconfiguration; RD=Reduction)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	Charter School Spaces to Reconfigure to Office	Charter School Spaces to Repurpose (Furniture Relocations Only)	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget	Construction Start	Substantial Completion
23	7	S	Dymally HS	Watts Learning Center Charter MS	RD	1	19	2	0	0	0	2	0	0	20	\$30,500	Q2-2025	Q3-2025
24	7	S	Gardena HS	New Millennium Secondary School	RD	1	6	2	0	0	0	1	0	0	8	\$19,000	Q2-2025	Q3-2025
						20	226	43	4	26	11	25	1	9	311	\$ 2,077,000		

Notes

- Operators are entitled to occupy, but specific occupants may change based on May 1st responses.
- There are 24 projects planned at 23 District campuses

2025-26 Proposition 39 Facilities Renovations "No Change" Projects

#	Board District	Region	District Campus	Charter School	Type (NC=No Change)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	Project Number	Amended Project Name
1	1	S	King ES	New Heights Charter School	NC	1	15	2	0	0	0	10374566	King ES - 2024-26 Prop 39
2	1	W	Wilton ES	Magnolia Science Academy #6	NC	1	6	2	0	0	0	10374578	Wilton ES - 2024-26 Prop 39
3	2	E	Breed ES	Extera Public School - Breed	NC	1	6	2	0	0	0	10374554	Breed ES - 2024-26 Prop 39
4	2	E	Eastman ES	Extera Public School #2 – Eastman	NC	1	6	2	0	0	0	10374557	Eastman ES - 2024-26 Prop 39
5	3	N	Armstrong MS	High Tech LA Charter MS	NC	1	8	1	0	0	0	10373260	Armstrong MS - 2023-26 Prop 39
6	3	N	Kindergarten Learning Academy	Ararat Charter School	NC	1	6	1	0	0	0	10370596	Kindergarten Learning Academy - 2019-26 Prop 39
7	4	W	Stoner ES	ICEF Vista Academy ES	NC	1	6	2	0	0	0	10373300	Stoner ES - 2023-26 Prop 39
8	4	N	Sutter MS	Ingenium Charter MS	NC	1	7	2	0	0	0	10374571	Sutter MS - 2024-26 Prop 39
9	4	W	Webster MS	Magnolia Science Academy #4	NC	1	6	2	0	0	0	10374576	Webster MS - 2024-26 Prop 39
10	4	W	Westchester Enriched Sciences Magnets	WISH Community School	NC	1	16	2	0	0	0	10374575	Westchester Enriched Sciences Magnets - 2024-26 Prop 39 (WISH
11	4	W	Wright STEAM Magnet MS	WISH Community School	NC	1	23	3	0	0	0	10374579	Wright STEAM Magnet MS - 2024-26 Prop 39
12	5	E	Clinton MS	Animo Jackie Robinson Charter HS	NC	1	21	4	0	0	0	10373264	Clinton MS - 2023-26 Prop 39
13	5	W	Fletcher ES	ISANA Octavia Academy	NC	1	8	2	0	0	0	10373277	Fletcher ES - 2023-26 Prop 39
14	5	E	Jones ES	Synergy Charter Academy	NC	1	14	2	0	0	0	10373287	Jones ES - 2023-26 Prop 39
15	5	W	Le Conte MS	Citizens of the World - Hollywood	NC	1	20	4	0	0	0	10373289	Le Conte MS - 2023-26 Prop 39

2025-26 Proposition 39 Facilities Renovations "No Change" Projects

#	Board District	Region	District Campus	Charter School	Type (NC=No Change)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	NEW Charter School Offices	NEW Charter School Instructional Spaces	NEW Charter School Sp. Ed. Rooms	Project Number	Amended Project Name
16	5	W	Selma ES	Larchmont Charter School	NC	1	25	7	0	0	0	10374619	Selma ES - 2024-26 Prop 39
17	5	E	Trinity ES	Gabriella Charter School #2	NC	1	11	2	0	0	0	10374572	Trinity ES - 2024-26 Prop 39
18	6	N	Fulton College Preparatory School	Lashon Academy - Valley Campus	NC	1	26	2	0	0	0	10374562	Fulton College Preparatory School - 2024-26 Prop 39
19	6	N	Glenwood ES	ISANA Palmati Academy	NC	1	4	2	0	0	0	10374563	Glenwood ES - 2024-26 Prop 39
20	6	N	Romer MS	ISANA Palmati Academy	NC	1	10	2	0	0	0	10374570	Romer MS - 2024-26 Prop 39
21	6	N	Sun Valley Magnet: Engineering, Arts & Technology	ISANA Cardinal Academy	NC	1	12	2	0	0	0	10372516	Sun Valley Magnet: Engineering, Arts & Technology - 2022-26 Prop 39
						21	256	50	0	0	0		

2025-26 Proposition 39 Facilities Renovations "Vacating" Projects

#	Board District	Region	District Campus	Charter School	Type (V=To Be Vacated)	CURRENT Charter School Offices	CURRENT Charter School Instructional Spaces	CURRENT Charter School Sp. Ed. Rooms	FORMER Charter School Spaces to Reconfigure	TOTAL Charter School Spaces to Occupy (Instructional, Administrative, and Special Ed.)	Project Budget to Vacate Work (A)	FY25 Unspent Budget Balance (B)	Additional Budget Needed to Reconfigure Campus (A) - (B) = (C)	Amount Previously Spent on Upgrades (D)	New Project Budget (A) + (D) = (E)	Project Number	Amended Project Name
1	2	E	Virgil MS	Citizens of the World - Silver Lake	V	1	7	2	-10	0	\$122,500	\$13,574	\$108,926	\$6,426	\$128,926	10373308	Virgil MS - 2023-26 Prop 39
2	4	W	Webster MS	Citizens of the World - Mar Vista	V	1	5	2	-8	0	\$99,500	\$24,108	\$75,392	\$892	\$100,392	10373310	Webster MS - 2023-26 Prop 39 (Citizens of the World - Mar Vista)
3	5	W	Irving STEAM Magnet MS	ISANA Octavia Academy	V	1	8	2	-11	0	\$154,000	\$46,034	\$107,966	\$66	\$154,066	10374565	Irving STEAM Magnet MS - 2024-26 Prop 39
						3	20	6	-29	0	\$376,000	\$83,716	\$292,284	\$7,384	\$383,384		

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE

D. Michael Hamner, FAIA, Chair
American Institute of Architects
Robert Campbell, Vice-Chair
L.A. Co. Auditor-Controller's Office
Dr. Samantha Rowles, Secretary
LAUSD Student Parent
Patrick MacFarlane, Executive Committee
Early Education Coalition
Scott Pansky, Executive Committee
L.A. Area Chamber of Commerce

Joseph P. Buchman – Legal Counsel
Burke, Williams & Sorensen, LLP
Lori Raineri and Keith Weaver – Oversight Consultants
Government Financial Services Joint Powers Authority

Neelura Bell
CA Charter School Association
Sandra Betts
CA Tax Reform Assn.
Chad Boggio
L.A. Co. Federation of Labor AFL-CIO
Aleigh Lewis
L.A. City Controller's Office
Jennifer McDowell
L.A. City Mayor's Office
Brian Mello
Assoc. General Contractors of CA
Santa Ramirez
Tenth District PTSA

William O. Ross IV
31st District PTSA
Rachelle Anema (Alternate)
L.A. Co. Auditor-Controller's Office
Bevin Ashenmiller (Alternate)
Tenth District PTSA
Ashley Kaiser (Alternate)
Assoc. General Contractors of CA
Vacant
Assoc. of CA School Admin - Retired
Vacant
LAUSD Student Parent

Timothy Popejoy
Bond Oversight Administrator
Perla Zitle
Bond Oversight Coordinator

RESOLUTION 2025-16**BOARD REPORT NO. 326-24/25**

RECOMMENDING THE BOARD DEFINE AND APPROVE THE 2025-2026 EDUCATION CODE SECTION 47614 (PROPOSITION 39) FACILITIES RENOVATION EFFORT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN

WHEREAS, District Staff proposes that the Board of Education (Board) define and approve the 2025-2026 Education Code Section 47614 (Proposition 39) facilities renovations for up to 48 projects at 45 District school sites, as listed on Exhibits A, B, and C, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein for a not-to-exceed cumulative budget of \$2,369,284; and

WHEREAS, District Staff also requests that the Board authorize the Chief Procurement Officer and/or the Chief Facilities Executive, and/or their designee(s), to execute all instruments necessary, as legally permissible, to implement the proposed projects, including budget modifications and the purchase of equipment and materials; and

WHEREAS, District Staff has concluded that each of the charter schools identified in attached Board Report 326-24/25 submitted a legally sufficient facilities request to the District and may locate on District school sites for the 2025-2026 school year pursuant to Proposition 39; and

WHEREAS, Bond Program funds earmarked for charter school facilities projects will be available to immediately execute renovations at multiple District school sites in order to satisfy the District's responsibilities under Education Code 47614 and related regulations; and

WHEREAS, The facilities improvements will increase the likelihood that the District school and charter school will successfully co-locate on a single school site with minimal interference and disruption to their respective educational programs; and

RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE 2025-2026 EDUCATION CODE SECTION 47614 (PROPOSITION 39) FACILITIES RENOVATION EFFORT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN

WHEREAS, the 2025-2026 Proposition 39 Facilities Renovation Effort includes various facilities renovations, reconfigurations, technology, furniture and equipment, and communications/safety systems purchases and upgrades; and

WHEREAS, The space allocated to each charter school by the District must be furnished, equipped and available for occupancy by the charter school for a period of at least 10 working days prior to the first day of instruction of the charter school; and

WHEREAS, Funding for the 2025-2026 Education Code Section 47614 (Proposition 39) facilities renovation projects will come from Bond Program funds earmarked for charter school facilities projects; and

WHEREAS, the District's Office of the General Counsel has reviewed the proposed Projects and determined that they may proceed to the School Construction Citizens' Bond Oversight Committee (BOC) for its consideration for recommendation to the Board of Education; and

WHEREAS, District staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The BOC recommends that the Board of Education define and approve the 2025-2026 Education Code Section 47614 (Proposition 39) facilities renovations for up to 48 project at 45 District school sites as listed on Exhibits A, B, and C with a not-to-exceed cumulative budget of \$2,369,284, and amend the Facilities SEP to incorporate therein, as described in Board Report 326-24/25, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the BOC's website.
3. The District is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the BOC and the District.

ADOPTED on May 1, 2025, by the following vote:

AYES: 9

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 4

/Michael Hamner/

D. Michael Hamner
Chair

/Robert Campbell/

Robert Campbell
Vice-Chair



Proposition 39 Facilities Renovation Effort (2025–26 School Year)

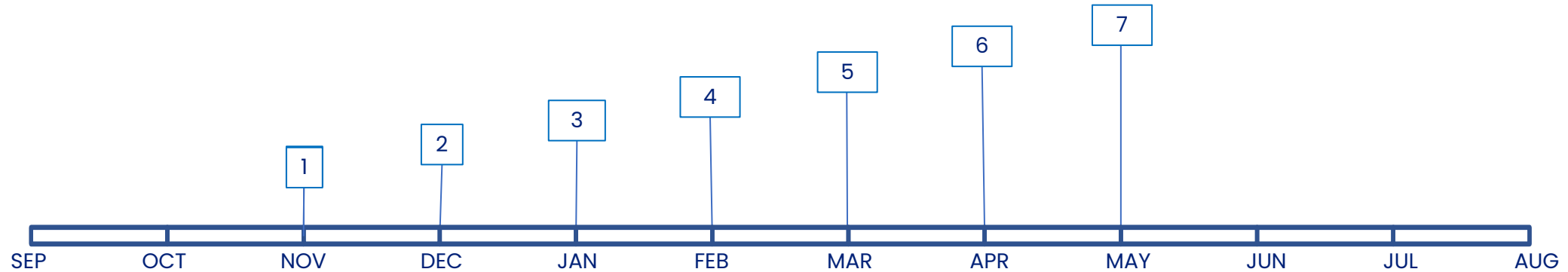
Bond Oversight Committee Meeting
May 1, 2025

Proposition 39 Facilities Renovation

Background

- In November 2000, the passage of Proposition 39 amended California Education Code § 47614 with the intent that public school facilities should be shared fairly among all public school students, including those in charter schools.
- As a result, school districts are required to make available, to all charter schools operating in their school district that submitted a legally sufficient facilities request, facilities in conditions reasonably equivalent to those in which the charter students would be accommodated if they were attending other public schools of the district.
- Each of the charter schools identified on Exhibits A and B of the Board Report submitted a legally sufficient facilities request to the District and may occupy District school sites for the 2025–2026 school year pursuant to Proposition 39.
- The District is obligated to pay for all costs associated with the effort to provide reasonably equivalent space.
- There are Bond Program funds earmarked specifically for this effort under the *Charter Schools Facilities Upgrades* category. If Bond Program funds are not approved for use, then General Funds would need to be expended instead.

Annual Deadlines In Accordance with Proposition 39 Implementing Regulations



- 1 By Nov 1st, charter schools submit a written request for use of LAUSD school facilities, including their projected in-district classroom Average Daily Attendance (ADA).
- 2 By Dec 1st, after careful review of each charter school facilities request and ADA, LAUSD agrees or objects to their ADA projections in writing.
- 3 By Jan 2nd, the charter school responds to any objections by reaffirming or modifying the ADA projections.
- 4 By Feb 1st, LAUSD prepares in writing a Preliminary Proposal to charter schools with eligible facilities requests.
- 5 By Mar 1st, charter schools respond to the Preliminary Proposal expressing any concerns, addressing differences, and making counter-proposals.
- 6 By Apr 1st, LAUSD submits in writing a Final Notification of Facilities Offered for each charter school.
- 7 By May 1st, the charter schools either accept or reject the final offers. If the final offer is accepted, LAUSD will prepare the rooms for charter occupancy 10 working days before their first day of instruction.

Proposition 39 Facilities Renovation

Scope of Work

- Projects are not fully scoped until after May 1st when it is known which charters have accepted space.
- At the current stage, projects are budgeted with the assumption that the space will need to be completely reconfigured and assumes that there is not adequate furniture in the inventory (for example, the District may need to purchase new furniture if there isn't adequate inventory to provide grade-level specific needs of the charter school).
- The scope of work for each site may include all or just some of the items below:
 - o Low voltage systems, including local area data networks, phones, public address (PA) systems, and independent intrusion alarm
 - o Repurpose and purchase reasonably equivalent computers, laptop carts, and/or end-user peripherals
 - o Renovations and reconfigurations to classroom space
 - o Repurpose existing furniture and equipment, or plan, purchase, and deliver new furniture and equipment
 - o Procurement and delivery of moving materials (boxes, storage containers, etc.), and relocation of room contents

Proposition 39 Facilities Renovation

Summary of 2025–26 Space Configurations

Type	Count	Budget
Sites with Upgrades New: Charter is offered space that is not currently configured for charter use New/Reconfiguration: Charter school is offered space already configured for charter use Growth: Charter is offered additional space that is not configured for charter use Reconfiguration/Reduction: Charter is offered different space on campus due to District operational needs or space has been reduced due to declining enrollment	24	\$2,077,000
Sites with No Change Charter to remain in existing District campus spaces	21	\$0
Vacating Sites Charter has vacated or will vacate the site; host school may demonstrate a need to return to original configuration	3	\$292,284
Total	48	\$2,369,284

Questions?